

25STCV30093 25STCV30093

County: los-angeles

Division: Civil Law and Motion

Department: 309

Hearing date: 2026-08-12

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C309%2C08%2F12%2F2026

Source SHA-256: 8eac5d8bcf8fe94725fd8a8d2c15e39575bfcf7eb58ce391c657380f0d7a7f97

Case Number: 25STCV30093 Hearing Date: August 12, 2026 Dept: 309

Superior Court of California

County of Los Angeles

DEPARTMENT

17

TENTATIVE RULING

JOVANNY TAPIA

vs.

GENERAL MOTORS, LLC

Case

No.: 25STCV30093

Hearing Date: August 12, 2026

Defendant's

motion for an order for compliance requiring Plaintiff to appear and comply with the initial deposition is GRANTED. Plaintiff is sanctioned, jointly and severally with counsel, \$1,500 due within 15 business days of entry of this order.

On

10/14/2025, Plaintiff Jovanny Tapia (Plaintiff) filed suit against General

Motors, LLC (Defendant), alleging violations of the Song-Beverly Warranty Act.

On 7/30/2026,

Defendant moved to compel Plaintiffs' compliance pursuant to CCP section 871.26.

Discussion

Defendant

moves for an order for compliance requiring Plaintiffs to appear and comply with the initial deposition under Code of Civil Procedure (CCP) section 871.26, subdivision (c)(1).

The enactment

of Assembly Bill 1755 was codified in Chapter 12 of Title 10 to Part 2 of the Code of Civil Procedure (herein, Chapter 12), which went into effect 1/1/2025. (See CCP § 871.20, et seq.) In passing Assembly Bill 1755, the legislature enacted provisions that require the parties to participate in initial depositions. (CCP §871.26, subd. (c).) The newly enacted provisions are designed to reduce court docket congestion and promote settlement by temporarily staying all discovery (other than the initial disclosure and document exchanges and initial depositions) until an early mediation is completed. (CCP § 871.26, subd. (d).)

In

opposition, Plaintiff's counsel argues that the motion should be continued because "Plaintiff's counsel is presently unable to perform the functions necessary to represent Plaintiff in this litigation, including producing Plaintiff for the initial deposition that GM seeks to compel." (Opp, 2: 10-12.)

However,

counsel provides no explanation as to why the attorney-client breakdown was not brought to the attention of the Court at any time prior, or why the motion to be relieved as counsel (a copy of which cannot be located in eCourt) was not advanced. As such, the Court finds a lack of reasonable diligence on counsel's part, and thus declines to continue the motion.

Based on the

foregoing, Defendant's motion for an order for compliance requiring Plaintiffs to appear and comply with initial deposition is granted. Plaintiff is

sanctioned, jointly and severally with counsel, \$1,500 due within 15 business days of entry of this order.

It is so ordered.

Dated: August
, 2026

Hon. Jon R.
Takasugi

Judge of the
Superior Court

Parties who intend to submit on this tentative must send an email to the court at by 4 p.m. the day prior as directed by the instructions provided on the court website at www.lacourt.org. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If all parties to a motion submit, the court will adopt this tentative as the final order. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. For more information, please contact the court clerk at (213) 633-0517.